

26LBCV02718 26LBCV02718

County: los-angeles

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Case Number: 26LBCV02718 Hearing Date: July 28, 2026 Dept: S28

BACKGROUND

On

December 6, 2024, Plaintiff Sharial Lee filed this lemon law matter against Defendants Volkswagen Group of America, Inc ("Defendant" or "VWGoA") and Pacific Volkswagen.

On

December 22, 2025, Plaintiff filed a notice of settlement of the entire case.

On

April 24, 2026, Plaintiff filed the instant motion for attorney's fees and a memorandum of costs.

On

July 15, 2026, Defendant Volkswagen filed opposition.

On

July 21, 2026, Plaintiff filed a reply.

DISCUSSION

Applicable

Law

A prevailing party is entitled to reasonable attorney fees in addition to other costs.

(Code Civ Proc. § 1033.5(a)(10).) "Prevailing party" includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a

defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. (Code Civ Proc. § 1032(a)(4).) In all other circumstances, the “prevailing party” shall be as determined by the court. (Ibid.)

The fee setting inquiry ordinarily begins with the “lodestar,” i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal. 4th 1084, 1095.) “The lodestar figure may then be adjusted, based on consideration of facts specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (Gorman v. Tassajara Dev. Corp. (2008) 162 Cal.App.4th 770, 774.)

In determining whether to adjust the lodestar figure, the court may consider the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (EnPalm LLC v. Teitler (2008) 162 Cal.App.4th 770, 774.)

The prevailing party bears the burden of proof and the amount is left to the trial court’s sound discretion. (Christian Research Institute v. Alnor (2008) 165 Cal. App. 4th 1315, 1320.) A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether. (Serrano v. Unruh (1982) 32 Cal.3d 621, 635.)

Analysis

A. Entitlement to Attorney’s Fees

The parties have settled this matter via an offer made by Defendant pursuant to Code Civ. Proc. § 998 (“§ 998 offer”) (Declaration of Jorge L. Acosta, Esq. “Acosta Decl.” ¶ 33.) Per the § 998 offer, Defendant has agreed to pay Plaintiff \$20,000. (Id.) The parties agreed that Plaintiff is the prevailing party in this matter and that Defendant will pay Plaintiff’s attorneys’ fees, costs, and expenses as awarded by this Court by way of noticed motion. (Id. at ¶ 37.)

Plaintiff now seeks \$30,296.50 in fees, \$1,402.89 in costs and expenses, and \$652.12 in pre-judgment interest, along with a 1.3x multiplier. (Mot., p. 19.)

As the prevailing party, Plaintiff is entitled to reasonable fees and costs. (Civ. Code § 1794(d)). Defendant does not dispute that.

B. Reasonableness

“Even after determining that a party is entitled to fees because it ‘prevailed,’ the trial court must still determine what amount of fees would be ‘reasonable’ in light of the relative extent or degree of the party’s success in obtaining the results sought.” (Sokolow v. County of San Mateo (1989) 213 Cal.App.3d 231, 247.)

“In determining hourly rates, the court must look to the ‘prevailing market rates in the relevant community.’” (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 100.) In making this determination, “[t]he court may rely on its own knowledge and familiarity with the legal market.” (Id.)

As to Song–Beverly warranty claims, prevailing buyers have the burden to show that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amounts. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 998 (Doppes).)

Records amounting to vague block billing are not objectionable per se, but are a risky choice, because moving parties have the burden to support fees requests, and the strategy may lead to trial courts’ discretionary curtailing of the number of compensable hours. (Christian Research Inst. v. Alnor (2008) 165 Cal.App.4th 1315, 1325.)

“‘In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.’” (Lunada Biomedical

v. Nunez (2014) 230 Cal.App.4th 459, 488. Accord, Etcheson

v. FCA US LLC (2018) 30 Cal.App.5th 831, 848.)

“The Song-Beverly Act’s attorney fee

provision ““requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable.” (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1158.)

Under the Song-Beverly Act, the

question whether attorneys’ fees were reasonably incurred may depend on circumstances including, “factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved.” (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470. The appellate court reviews awards of attorney fees under Civil Code section 1794, subdivision (d), for abuse of discretion. (Doppes, supra, 174 Cal.App.4th at p. 998.)

In

Opposition, Defendant first argues that Plaintiff’s counsels rates are unreasonably high: \$695/hour for Ms. Perdue; \$525/hour for Mr. Urner; \$450 for Messrs. Mora and Acosta; \$350/hour for Ms. Jason; and the rate of \$250/hour for law clerks and paralegals. Defendant argues that the paralegal rates should be adjusted to a more reasonable \$200/hour, and the attorneys should be adjusted to a rate of \$400/hour, while Ms. Jason’s rate should be adjusted to \$300/hour.

Here,

the Court finds that counsels’ hourly rates—ranging between \$250 and \$695—are reasonable given their experience and the locality of the services provided.

Defendant

further disputes the following billing entries:

1. 1.8

hours preparing discovery requests;

Defendant contends that this time billed

at \$450 per hour totaling \$810 should be reduced by 1.3 hours as Plaintiff has

sent near-verbatim discovery requests multiple times in other cases involving VWGoA, and Plaintiff's firm does not modify their discovery requests on a case-by-case basis.

A trial court's referencing counsel's use of templates, as one part of reasoning that a reduced number of attorneys was needed in a case, was affirmed. (See *Morris v. Hyundai Motor Am.* (2019) 41 Cal.App.5th 24, 31-33, 39 ["asserted that even though her counsel used 'form documents' in the case, work was necessary to conform those templates to the actual facts of this case."].)

Here, the Court agrees that this time is excessive for sending identical, boilerplate discovery requests. Thus, these hours are reduced to 1 hour.

2.

2.4 hours reviewing discovery responses;

Again,

Defendant argues that VWGoA's responses do not drastically diverge in other cases litigated against Plaintiff's counsel as Plaintiff's firm continues to propound boilerplate, template, discovery requests to VWGoA. The Court agrees that this time is excessive for reviewing nearly identical discovery responses. Thus, these hours are reduced to 1.4 hours.

3.

1.7 hours reviewing discovery requests from Volkswagen;

Again,

Defendant argues that VWGoA's requests do not drastically diverge in other cases litigated against Plaintiff's counsel on routine lemon law cases. The Court agrees that this time is excessive for reviewing nearly identical discovery requests. Thus, these hours are reduced to 1 hour.

4.

2.3 hours to prepare responses to VWGoA's discovery requests

Again, Defendant argues that VWGoA propounds boilerplate, template discovery requests to plaintiffs in a variety of lemon-law lawsuits, including ones litigated against Plaintiff's counsel. Defendant further points out that this entry was block billed, such that there is no understanding of when and for how long Plaintiff's counsel devoted to preparing special interrogatories, requests for production of documents, form interrogatories, and requests for admission. The Court agrees that this time is excessive, and improperly block billed. Thus, these hours are reduced to 1.3 hours.

5. Courtney

Perdue's Hours;

Defendant argues that Courtney Perdue, a senior attorney who charges \$695/hour, performed tasks that ordinarily are performed by a junior associate such as: 0.5 hours to "[r]eview file and draft memorandum for court appearance professional's attendance at CMC on behalf of Plaintiff."; 0.7 total hours to review Defendants' Answers; and 0.4 hours reviewing a boilerplate initial letter that VWGoA sends in each of its cases. The Court agrees that time spent on these tasks are excessive and could have been handled by a less experienced attorney with a lower hourly rate. Thus, these entries are reduced by 0.2 hours each.

6. 2.2

hours to draft the complaint.

Defendant

argues that there was nothing remarkable or extraordinary when one compares this complaint to the others Plaintiff's counsel has filed in the past against VWGoA as each complaint Plaintiff's counsel files is almost verbatim save for the name, residence, and facts about the vehicle's make, model, and year. The Court agrees that this time is excessive given the straightforward, template nature of these Complaints. These hours are reduced to 1 hour.

7. 6.3

hours to prepare Plaintiff's Motion for Attorneys' Fees, 2.5 hours to draft its opposition, one hour to review this reply, one hour to prepare for the hearing, and one hour to attend the hearing.

Defendant

argues that Plaintiff's

counsel expects to spend 10.2 hours, or 15% of the total hours spent working on this case, on fee-motion practice, which is excessive as Plaintiff's counsel relies on the same boilerplate motion templates and has filed nearly identical motions against VWGoA.

The

Court does not find these hours excessive given that Plaintiff must produce and explain its billing records, respond to opposition taking issue with specific time entries, and prepare for the hearing. Thus, the Court will not reduce these hours.

Overall,

the Court makes reductions totaling 3.5 hours at \$450 per hour, 0.6 hours at \$695 per hour, and 1.2 hours at \$525 per hour, for a total reduction of \$2,622.00.

Accordingly,

the Court awards the reduced amount of \$27,674.50 as reasonable attorney fees.

However,

the Court will not award any fee multiplier. The Court does not believe this matter involved any complex or novel legal issues warranting any multiplier. Indeed, Plaintiff's counsel litigates dozens of matters nearly identical to this one, often using templates and generally abiding by the same litigation strategy.

As

to pre-judgment interest, Plaintiff seeks pre-judgment interest on Plaintiff's \$20,000 settlement in the amount of \$652.12, calculated as follows:
 $(\$20,000 \times 0.10) / 365 = \5.48 per day. $\$5.48 \times 119$ days = \$652.12. (Mot., p. 2, fn 1.) Plaintiff seeks "pre-judgment interest" to compensate Plaintiff for the burden she faced as a result of Defendant's delays in remitting settlement within 45 days. Plaintiff argues that Defendant's inexplicable delay ultimately required motion practice, and at the hearing, Defense Counsel advised that the settlement check had been mailed out that day, but delivery was delayed.

“By

law, postjudgment interest accrues in lemon-law cases at the time the final judgment is entered. (Code Civ. Proc., § 685.020; Civ. Code, § 1794, subd. (d).)” (Hyundai Motor Am. v. Superior Ct. (2015) 235 Cal. App. 4th 418, 421.) “Courts have interpreted the statute to mean what it says: a judicial determination regarding a money award does not bear postjudgment interest until a final judgment is entered.” (Id., p. 424) In a lemon law case where a 998 offer is accepted, the final judgment is the judgment of dismissal filed and entered. (Ibid.) “In Wohlgemuth v. Caterpillar Inc. (2012) 207 Cal.App.4th 1252, 1260, the Court of Appeal affirmed an award of attorney fees and costs to a buyer who dismissed his action following his acceptance of the manufacturer's section 998 offer. For purposes of the Song–Beverly Act, Wohlgemuth held that the term “judgment” in Civil Code section 1794, subdivision (d), could include any final determination of the rights of the parties in an action or proceeding, including a compromise agreement calling for a payment by a vehicle manufacturer and dismissal of the lemon law action by the buyer.” (Id., p. 425.)

Here,

Plaintiff does not put forth any authority for her request for prejudgment interest, and if anything, this should have been a request for postjudgment interest.

At

best, postjudgment interest would run from the judgment of dismissal entered on February 20, 2026, but this does not qualify as a judgment in favor of Plaintiff which would entitle her to post-judgment interest. Plaintiff fails to carry her burden on this issue.

Plaintiff

also requests costs in this motion. However, costs are not to be requested by a fee motion but rather a memorandum of costs. (Cal Rules of Court, rule 3.1700(a)(1).) Should Defendant have failed to file a timely motion to tax, the Court clerk will enter the costs requested on the judgment. (Cal Rules of Court, rule 3.1700(b)(4).)

CONCLUSION

Plaintiff's Motion for Attorney's Fees is GRANTED in part in the reduced amount of \$27,674.50.

Plaintiff filed a memorandum of costs. Should

Defendant fail to file a timely motion to tax, the Court clerk will enter the costs requested on the judgment. (Cal Rules of Court, rule 3.1700(b)(4).)

Moving parties to give notice.